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GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENTAL QUALITY
CADILLAC DISTRICT OFFICE



LIESL EICHLER CLARK
DIRECTOR

March 4, 2019

Mr. Jeffrey Dietlin
Water Resources Supervisor
Cadillac WWTP
200 N. Lake Street
Cadillac, Michigan 49601

Dear Dietlin:

SUBJECT: Designated Name: Cadillac Wastewater Treatment Plant (WWTP)
National Pollutant Discharge Elimination System (NPDES) Permit No.
MI0020257
Industrial Pretreatment Program (IPP) Perfluoroalkyl and Polyfluoroalkyl
Substances (PFAS) Interim and Summary Report Approval

On July 30, 2018, the City of Cadillac ("City") submitted the Industrial Pretreatment Program (IPP) Per and Polyfluoroalkyl Substances (PFAS) Interim Report to the Department of Environmental Quality (DEQ), Water Resources Division (WRD). On October 29, 2018, the City updated the report with analytical results that confirmed that the City accepts wastewater from one facility that was found to be discharging Perfluorooctane Sulfonate (PFOS) greater than the screening level of 12 ng/l to the Cadillac WWTP. On November 5, 2018, PFOS concentrations in the Cadillac WWTP effluent were monitored at 6.5 ng/l, which does not exceed the water quality standard of 12 ng/l.

We thank the City for its efforts under the IPP PFAS Initiative so far. Staff have reviewed your IPP PFAS Interim Report, with revisions submitted through December 12, 2018, and your IPP PFAS Summary Report received November 29, 2018. Your reports are hereby approved.

We encourage the City to work cooperatively with the confirmed source to reduce PFOS discharged to the Clam River and accumulated in biosolids. The goal of the IPP PFAS Initiative is to reduce loadings of PFOS to the environment since it is bioaccumulative. PFOS may be reduced through actions such as product substitution, site/process clean up, and pretreatment. These efforts will help protect our surface water resources as well as increasing the likelihood that biosolids may be managed without restriction.

Please know that although the DEQ, WRD expects to see ongoing progress, we understand that reduction of PFOS may take time, given the complexity of the issues and the emerging nature of this pollutant. In order to assess your wastewater quality and track improvements over time, please sample your WWTP effluent for PFAS on a semiannual basis and submit the laboratory reports to WRD via MiWaters as a "PFAS

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POTW Effluent Monitoring Report” on June 30 and December 31 of each year, starting June 30, 2019, unless otherwise directed by compliance staff. We are requiring this additional monitoring under the authority of R323.2154(3) of the Part 21 Rules of the NREPA. In addition, confirmed sources should be monitored by the City at frequencies sufficient to characterize effluent quality and demonstrate the Industrial User’s (IU’s) progress in its PFOS/PFOA reduction effort.

In order to track your progress over time, please submit an IPP PFAS status report on a semiannual basis via MiWaters as an “IPP PFAS Status Report” or as otherwise directed by compliance staff. The first status report is due June 30, 2019 and subsequent reports will be due each December 31 and June 30 thereafter until otherwise notified by DEQ, WRD. These reports will capture the steps taken by the POTW to implement source control measures at specific Industrial Users or throughout the collection system. When your NPDES permit is re-issued, language will be included for a PFOS pollutant minimization and source evaluation program. This program will take the place of the IPP PFAS Status Report.

As a next step, we advise the City to consider developing a local limit for PFOS. We understand that local limits for PFOS have not been previously developed in Michigan, and the DEQ, WRD will assist you with this effort if you choose to pursue this action. An approved local limit, adopted locally, will provide a good basis for your compliance efforts while still protecting water quality. Please note that if biosolids standards for PFOS are established, local limits would need to be reviewed to ensure that they are protective of your biosolids.

We also recommend the City consider developing legal authority for requiring reduction of industrial PFOS discharges, similar to the approach taken by many IPPs to minimize Mercury discharges. Municipalities may adopt sewer use ordinance (SUO) language requiring industrial users to implement PFAS Reduction Plans that allow them to discharge PFOS greater than target concentrations as long as they were complying with a reduction plan and schedule approved by the City. The City would reserve the right to take enforcement action if needed. There are many examples of similar SUO language for allowing reduction plans such as those used for mercury. Similar language could be developed for PFOS/PFOA. Your legal counsel should be consulted. Please contact your District IPP staff or Regional IPP-PFAS Specialist if you would like more information about this option.

This IPP PFAS Interim Report and Summary Report approval does not constitute a release or waiver of liability for compliance with your NPDES permit, your NPDES permit application, or Part 31 of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended. Please be advised that if new PFAS information becomes available, or new standards or requirements are implemented, WRD may require additional actions in accordance with NREPA and its rules.

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Thank you for doing your part to protect Michigan's public health and environment from these emerging pollutants. Should you require further information, please contact me, or Mr. Thomas Berdinski at 616-356-0212, berdinski@michigan.gov, Ms. Claire Lowe at 989-330-4639, lowec9@michigan.gov for questions about industrial pretreatment; Mr. Donal Brady at (231) 876-4478, bradyd6@michigan.gov for NPDES permit compliance issues; Mr. Michael Person at 989-297-0779, personm@michigan.gov for biosolids program issues; or DEQ, WRD, Cadillac District Office, 120 West Chapin Street, Cadillac, Michigan, 49601-2158.

Sincerely,



Brian Jankowski, District Supervisor
Cadillac District Office
Water Resources Division
jankowskib@michigan.gov
231-429-0982

bwj:sh

cc: Mr. Thomas Berdinski, Grand Rapids District Office, DEQ, WRD
Ms. Claire Lowe, Cadillac District Office, DEQ, WRD
Mr. Donal Brady, Cadillac District Office, DEQ, WRD
Mr. Jon Russell, DEQ, WRD